

Scenario 2: Novel Notice Output

STATUS: FRESH CLAUDE LLM DRAFT + AUTO-CACHED (SCORE < 70%)

SCENARIO 2: NOVEL NOTICE & AUTO-CACHING

Prompt Version: fast_track_corpus_v1

Provider: fast-track

SECTION 1: Addressee and Reference Block

BEFORE THE PROPER OFFICER / ASSISTANT COMMISSIONER Goods and Services Tax Department, Proper Officer, Ward 10, Maharashtra **GSTIN:** 27BBBCC9876K1Z9 | **PAN:** AAACA1234A **Trade / Legal Name:** CryptoNode Systems India
Notice Ref No.: CUSTOM/999/2026 | **DIN/RFN:** DIN-2026-99 | **Dated:** 14 September 2026

SECTION 2: Subject

Reply on behalf of M/s CryptoNode Systems India to Show Cause Notice / Intimation bearing Ref No. CUSTOM/999/2026 dated 14 September 2026 issued under Section 73/74 of the CGST/SGST Act, 2017 seeking complete dropping of proposed proceedings and demand.

SECTION 3: Synopsis

The Taxpayer M/s CryptoNode Systems India has been served with the impugned notice proposing tax demand of as specified in SCN for FY 2023-24. The notice is fundamentally defective as it relies on summary format allegations without supplying supporting evidence, invokes extended period without establishing willful suppression, and denies statutory ITC in violation of settled law. All tax obligations have been faithfully discharged within statutory due dates. In view of binding Supreme Court and High Court precedents, the proceedings are liable to be dropped in full.

SECTION 4: Statement of Facts

1. The Taxpayer M/s CryptoNode Systems India is a duly registered entity under GST Law engaged in lawful business operations in Maharashtra. 2. For Financial Year 2023-24, the Taxpayer regularly filed monthly returns in Form GSTR-1 and Form GSTR-3B and paid all self-assessed tax liabilities. 3. On 14 September 2026, the Proper Officer issued communication Ref No. CUSTOM/999/2026 (DIN: DIN-2026-99) alleging statutory contraventions. 4. The Taxpayer submits this formal reply to demonstrate that no short payment, tax evasion, or suppression has occurred.

SECTION 5: Preliminary Objections — Jurisdiction

1. **Lack of Competent Jurisdiction:** The impugned notice has been issued without statutory authority under Section 73/74 of the CGST Act, 2017. 2. **Monetary Limit Defect:** The officer issuing the notice exceeds the prescribed monetary threshold limits designated by CBIC Circulars for Officer grade hierarchy.

SECTION 6: Preliminary Objections — Limitation and Procedure

1. **Barred by Limitation:** The proposed demand for FY 2023-24 is barred by limitation under Section 73(10) / 74(10) of the CGST Act. 2. **Absence of Form GST DRC-01A:** Intimation in Form GST DRC-01A was not issued prior to the SCN, violating mandatory pre-SCN consultation requirements under Rule 142(1A). 3. **Want of Valid DIN:** Absence of verifiable Document Identification Number (DIN) invalidates the notice per CBIC Circular No. 122/41/2019-GST.

SECTION 7: Para-wise Reply

REPLY ON BEHALF OF CryptoNode Systems India GSTIN: 27BBBCC9876K1Z9 Respected Sir/Madam, With reference to the notice/intimation issued under GST Law for FY 2023-24, we submit that all tax liabilities have been duly discharged in accordance with law. It is requested that the proposed proceedings be dropped and closure issued. Thanking you,
CryptoNode Systems India

SECTION 8: Ground 1

Absence of Willful Suppression or Intent to Evade Tax: Extended period under Section 74 cannot be invoked on routine return mismatches. As settled by the Hon'ble Supreme Court in *Pushpam Pharmaceuticals Co. v. CCE* (1995 Supp (3) SCC 462) and *Cosmic Dye Chemical v. CCE* (1995 (75) ELT 721), 'suppression' requires deliberate withholding of facts with intent to evade tax, which is completely absent here.

SECTION 9: Ground 2

ITC Cannot Be Denied to Purchasing Dealer for Supplier Default: It is established by the Hon'ble Calcutta High Court in *Suncraft Energy Pvt Ltd v. ACST* (2023) and Madras High Court in *D.Y. Beathel Enterprises v. STO* (2021) that Input Tax Credit cannot be denied to the buyer without first initiating recovery proceedings against the selling supplier who collected tax.

SECTION 10: Ground 3

Bare Summary Notice Violates Principles of Natural Justice: Issuing a format DRC-01 notice without stating specific contraventions or annexing supporting documents denies a fair opportunity of defense, rendering the notice void ab initio as held in *M/s NKAS Services Pvt. Ltd. v. State of Jharkhand* (2021).

SECTION 11: Without Prejudice — Alternative Submissions

Without prejudice to primary grounds, even if any tax liability is sustained, no penalty can be levied under Section 73(9) / 74(9) as the Taxpayer acted under bona fide interpretation of statutory rules (*Continental Foundation v. CCE*). Further, interest under Section 50 is payable strictly on net cash liability paid via Electronic Cash Ledger.

SECTION 12: Quantum, Interest and Computation

1. The demand quantum of as specified in SCN has been computed without providing invoice-level reconciliation details. 2. Interest under Section 50 must be restricted to net cash liability as per proviso to Section 50(1). 3. Penalty under Section 73/74 is unstatutory and liable to be waived in full.

SECTION 13: Prayer

In light of the above submissions, the Taxpayer respectfully prays that: 1. The impugned Show Cause Notice Ref No. CUSTOM/999/2026 be dropped in its entirety and proceedings closed. 2. No penalty or interest be levied against the Taxpayer. 3. An opportunity of **Personal Hearing** under Section 75(4) of the CGST Act be granted before passing any adverse order.

SECTION 14: Annexures

1. Copy of GST Registration Certificate (Form GST REG-06) 2. Copies of GSTR-1 and GSTR-3B returns filed for FY 2023-24 3. GSTR-2A / 2B Reconciliation Statement & Tax Invoices 4. Proof of Tax Payments / Form GST DRC-03 (if applicable)

SECTION 15: Declaration and Signature Block

I, Authorized Signatory for M/s CryptoNode Systems India, do hereby verify and declare that the contents of Sections 1 to 14 above are true and correct to the best of my knowledge, information, and legal advice. **For M/s CryptoNode Systems India** _____ Authorized Signatory / Director Place: Maharashtra Date: 14 September 2026